

## State vs Vikas Gupta on 29 November, 2023

IN THE COURT OF METROPOLITAN MAGISTRATE-  
08(CENTRAL), TIS HAZARI COURTS : DELHI

Presiding Officer: Ms. Meena Chauhan, DJS

FIR No. 176/2019  
PS: Kotwali  
State v. Vikas Gupta  
U/s 186/324/332/353/394/34 Indian Penal Code  
CIS No. 10256/2019

Date of Institution of case : 03.08.2019  
Date when Judgment reserved : 31.10.2023  
Date on which Judgment pronounced : 29.11.2023

### JUDGMENT

a. Serial no. of the case : FIR No. 176/2019 PS: Kotwali Date of the commission of b. 06.06.2019 the offence c. Name of the Complainant : Sh. Gangaram Vikas Gupta S/o Sh. Shyam Chand Name of Accused, his d. : Gupta R/o House no. 111, Gali no.3, parentage and residence Kanti Nagar, Delhi.

|                           |                                           |
|---------------------------|-------------------------------------------|
|                           | U/s 186/324/332/353/394/34                |
| e Offences complained of  | :                                         |
|                           | Indian Penal Code                         |
| Plea of the Accused and   |                                           |
| f                         | :                                         |
| his examinations (if any) | Pleaded not guilty.                       |
| g Final Order             | :                                         |
| h Date of Order           | Acquitted under all charges<br>29.11.2023 |

### BRIEF REASONS FOR DECISION:

1. In brief, the case of prosecution is that on 06.06.2019 at about 4:30 am at Upper Subhash Marg, Near Pagal State Vs. Vikas Gupta PS Kotwali Baba Mandir, Chandni Chowk, Delhi within the jurisdiction of Police Station Kotwali, the accused along with his co-associates (since not arrested) in furtherance of their common intention committed robbery by snatching Rs 630/- from possession of complainant namely Ganga Ram by voluntarily causing hurt to him for the aforesaid purpose, further, had voluntarily obstructed complainant namely Ct. Ram Singh (public servant) in discharge of his public function, used criminal force against police official Ct. Ram Singh in execution of his public function in order to prevent him from executing his lawful duties and voluntarily caused hurt to Ct. Ram Singh by means of sharp object (cutter) and also bite him off and thereby committed an offence punishable u/s 186/324/332/353/394/34 of the Indian Penal Code, 1860 (hereinafter called as IPC).

2. After completion of an investigation, a charge sheet was filed against the accused on 03.08.2019.

Cognizance of the offence was taken on the same day and copy of charge sheet and annexed documents were supplied to the accused under section 207 of The Code of Criminal Procedure, 1973 (hereinafter called as Cr.P.C). Thereafter, a charge under section 186/324/332/353/394/34 IPC was framed against him on 04.10.2019 to which he pleaded not guilty and claimed trial.

3. Thereafter, the prosecution was given the opportunity to substantiate the allegations against the accused. The prosecution examined eight (08) witnesses to substantiate allegations against the accused persons, which are as following:

State Vs. Vikas Gupta PS Kotwali Dates of Name of Dates of Sr. Documents Exhibited  
Cross-

| No.  | Prosecution<br>Witnesses | in Evidence                                                                                                                                                  | examination<br>-in-chief  | examination               |
|------|--------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------|---------------------------|
|      |                          | (i) Complaint<br>Ex.PW1/A<br>(ii) Site plan<br>Ex.PW1/B<br>(iii) Seizure memo of<br>money Ex.PW1/C<br>(iv) Seizure memo of<br>cutter Ex.PW1/D                |                           | n                         |
| PW-1 | Gangaram                 | (v) Sketch memo of<br>cutter Ex.PW1/E<br>(vi) Arrest memo<br>Ex.PW1/F<br>(vii) Personal search<br>memo Ex.PW1/G<br>(viii) Case Property<br>Ex.P-1, P-2 & P-3 | 03.02.2020                | 03.02.2020                |
| PW-2 | Raj Kumar                | Nil                                                                                                                                                          | 03.02.2020                | 03.02.2020                |
| PW-3 | Ct. Anil                 | Nil                                                                                                                                                          | 04.03.2021                | 04.03.2021                |
|      |                          | (i) Seizure memo of<br>uniform Ex.PW4/A                                                                                                                      |                           |                           |
| PW-4 | Ct. Ram<br>Singh         | (ii) Disclosure<br>statement of accused<br>Ex.PW4/B                                                                                                          | 25.02.2020,<br>19.01.2023 | 19.01.2023,<br>24.06.2023 |
| PW-5 | Ct. Jitender             | Nil.                                                                                                                                                         | 29.03.2022                | 22.04.2022                |
| PW-6 | ASI<br>Raghunath         | (i) Rukka Ex.PW6/A                                                                                                                                           | 08.06.2022,<br>21.07.2023 | 21.07.2023,<br>12.10.2023 |
| PW-7 | Singh                    | Mark M-1                                                                                                                                                     | 24.05.2023                | 24.05.2023                |

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PS Kotwali

Mark M-2

PW-8 Dr. Shivaji

Mark M-3

24.05.2023

24.05.2023

Mark M-4

#### 4. Vide separate statements of the accused dated

04.10.2019 and 29.03.2022 recorded u/s 294 Cr.P.C, the accused admitted the factum of registration of FIR (Ex.A-

1), endorsement on rukka (Ex.A-1), certificate u/s 65-B Indian Evidence Act (Ex.A-3), DD No. 26PP Red Fort dated 05.06.2019 (Ex.A-4) and sanction given by concerned ACP U/s 195 Cr.P.C (Ex.P-1) without admitting the contents of the same.

5. The prosecution evidence was closed on 12.10.2023 and the statements of the accused were recorded under Section 313 Cr.P.C read with section 281 of Cr.P.C on 17.10.2023, wherein he pleaded his innocence and stated to have been falsely implicated. Accused stated that nothing was recovered from him and all the recovery was planted upon him. He further stated that police officials had apprehended him and beat him due to which he suffered fracture on his right leg and he was not possessing any cutter nor had used the same.

6. Accused opted not to lead defence evidence. Final arguments were heard at length from both sides.

State Vs. Vikas Gupta PS Kotwali DISCUSSION, DECISION AND REASONS THEREON:

7. At the time of final arguments, it is argued by Ld. APP for the State that prosecution has proved its case beyond reasonable doubts and all the ingredients of the relevant section are completed. He submitted that even though only the copy of the MLCs have come on record, the accused has not put any suggestion doubting the veracity of MLCs or disputing the injuries sustained by the witnesses. Learned legal counsel for the accused argued that the accused has been falsely implicated in the present case. He submitted that the testimonies of the prosecution witnesses are full of material contradictions with regard to the registration of FIR, recovery of allegedly robbed money and cutter. It is further submitted that the accused has sustained injuries on his leg which has been caused by the police officials. Learned Counsel for the accused submitted that the MLC has not been proved as

prosecution has relied upon photocopy of the MLCs. It is further argued that despite the availability of the public witnesses, no one was joined in the investigation. It is also argued that the recovery memos, sketch memo, site plan and tehrir are not prepared properly. Therefore, it is prayed that the accused may be acquitted. Ld. LAC for the accused has relied upon the two judgments of Hon'ble Supreme Court titled as Suraj Mal vs. The State(Delhi State Vs. Vikas Gupta PS Kotwali Administration) and Sahib Singh vs. State of Punjab AIR 1997 SUPREME COURT 2417.

8. I have cogitated over the submissions made by ld.

APP for the state and Ld. LAC for the accused. At this juncture, it is prudent to discuss the penal provisions involved in the case for arriving at just a decision. The penal provisions are reproduced in verbatim:-

186. Obstructing public servant in discharge of public functions.--

Whoever voluntarily obstructs any public servant in the discharge of his public functions, shall be punished with imprisonment of either description for a term which may extend to three months, or with fine which may extend to five hundred rupees, or with both.

324. Voluntarily causing hurt by dangerous weapons or means.- Whoever, except in the case provided for by section 334, voluntarily causes hurt by means of any instrument for shooting, stabbing or cutting, or any instrument which used as weapon of offence, is likely to cause death, or by means of fire or any heated substance, or by means of any poison or any corrosive substance, or by means of any explosive substance or by means of any substance which it is deleterious to the human body to inhale, to swallow, or to receive into the blood, or by means of any animal, shall be punished with imprisonment of either description for a term which may extend to three years, or with fine, or with both.

332. Voluntarily causing hurt to deter public servant from his duty.

--Whoever voluntarily causes hurt to any person being a public servant in the discharge of his duty as such public servant, or with intent to prevent or deter that person or any other public servant from discharging his duty as such public servant, or in consequence of anything done or attempted to be done by that person in the lawful discharge of his duty as such public servant, shall be punished with imprisonment of either description for a term which may extend to three years, or with fine, or with both.

353. Assault or criminal force to deter public servant from discharge of his duty.--Whoever assaults or uses criminal force to any person being a public servant in the execution of his duty as State Vs. Vikas Gupta PS Kotwali such public servant, or with intent to prevent or deter that person from discharging his duty as such public servant, or in consequence of anything done or attempted to be done by such person in the lawful discharge of his duty as such public servant, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

378. Theft: Whoever, intending to take dishonestly any moveable property out of the possession of any person without that person's consent, moves that property in order to such taking, is said to commit theft.

390. Robbery: In all robbery, there is either theft or extortion.

When theft is robbery: Theft is "robbery" if, in order to the committing of the theft, or in committing the theft, or in carrying away or attempting to carry away property obtained by the theft, the offender, for that end, voluntarily causes or attempts to cause, to any person death or hurt or wrongful restraint, or fear of instant death or of instant hurt, or of instant wrongful restraint.

When extortion is robbery: Extortion is "robbery" if the offender, at the time of committing the extortion, is in the presence of the person put in fear, and commits the extortion by putting that person in fear of instant death, of instant hurt, or of instant wrongful restraint to that person or to some other person, and, by so putting in fear, induces the person so put in fear, then and there to deliver up the thing extorted.

Explanation.- The offender is said to be present if he is sufficiently near to put the other person in fear of instant death, of instant hurt, or of instant wrongful restraint.

392. Punishment for robbery: Whoever commits robbery, shall be punished with rigorous imprisonment for a term which may extend to ten years, and shall also be liable to fine; and, if the robbery be committed on the highway between sunset and sunrise, the imprisonment may be extended to fourteen years.

394. Voluntarily causing hurt in committing robbery: If any person, in committing or in attempting to commit robbery, State Vs. Vikas Gupta PS Kotwali voluntarily causes hurt, such person, and any other person jointly concerned in committing or attempting to commit such robbery, shall be punished with imprisonment for life, or with rigorous imprisonment for a term which may extend to ten years, and shall also be liable to fine.

34. Acts done by several persons in furtherance of common intention.-When a criminal act is done by several persons in furtherance of the common intention of all, each of such persons is liable for that act in the same manner as if it were done by him alone. Thus, this provision stresses upon the existence of common intention as well as participation of each accused by committing a 'criminal act', not necessarily in itself amounting to an offence. Common intention may be proved by conduct, as it can be formed in the course of occurrence itself, and there is no need to specifically prove a pre-meditation or prior conspiracy [Abdulla Kumhi Vs. State of Kerala, AIR 1991 SC 452, Hari Om Vs. State of U.P. (1993) 1 Crimes 294 (SC)].

9. Before proceeding for the appreciation of the evidence, the cardinal principle of criminal law is to be borne in mind that the prosecution is supposed to prove its case on a judicial file beyond reasonable doubt by leading reliable, cogent and convincing evidence. Further, it is a settled proposition of criminal law that in order to prove its case on a judicial file, prosecution is supposed

to stand on its own legs and it cannot derive any benefit whatsoever from the weaknesses, if any, of the defence of the accused. Further it is a settled proposition of criminal law that the burden of proof of the version of the prosecution in a criminal trial throughout the trial is on the prosecution and it never shifts on to the accused. Also it is a settled proposition of criminal law that the accused is entitled to the benefit of every reasonable doubt in the prosecution story and such reasonable doubt entitles the accused to State Vs. Vikas Gupta PS Kotwali acquittal.

10. In *Braham Singh vs State (NCT of Delhi)*, Crl. A. no. 28/2008, decided on 23/11/2009, has discussed the distinction between theft and robbery. It has held as under:

"14. The line of distinction between "robbery" as defined under Section 390 of the IPC and "theft" as defined in Section 378 of the IPC is thin but nevertheless distinct. Theft becomes robbery if in the process of committing the theft the offender causes or attempts to cause either death or hurt or a wrongful restraint....

15. Section 390 of the IPC in fact contemplates that the accused should have from the very start the intention to deprive the complainant of the property and should for that purpose either hurt him or place him under wrongful restraint. Where A and B were stealing mangoes from a tree, C surprised them, on which A knocked him down senseless with a stick; where a person, in snatching a nose-ring, wounded the woman in the nostril and caused her blood to flow, this offence was committed. Where the accused slapped the victim after dispossessing him of his watch in order to silence him an offence under Section 390 was made out. These are instances of robbery for which the accused stood convicted. See *Husrut Sheikh* (1866) 5 WR (Cr) 85, *Teekai Bheer* (1866) 5 WR (Cr) 95 and *Harish Chandra* AIR 1976 SC 1430."

11. The prosecution in this case had to prove the following points of determination:

□ Firstly, that the complainant and Ct. Ram Singh was present at the spot of occurrence at the relevant point of time.

□ Secondly, that the accused intending to take dishonestly the purse of the complainant out of the possession of the complainant without his consent, moved it in order to such taking by putting him in fear of instant death, hurt or wrongful restraint and State Vs. Vikas Gupta PS Kotwali actually voluntarily causing hurt in commission, or attempt at commission of robbery.

□ Thirdly, that the injured Ct. Ram Singh was a public servant and was discharging his public function at the time of incident;

□ Fourthly, that the accused had voluntarily obstructed Ct. Ram Singh, and used criminal force against him to deter him from discharging his public function while he was on duty;

□Fifthly, that in doing so the accused inflicted a simple injury on the person of Ct. Ram Singh by means of sharp objects.

□Sixthly, that the accused was present at the spot of occurrence, and no person other than the accused could possibly have committed the offence.

12. Perusal of prosecution evidence reflected that both the incident of alleged commission of robbery and causing hurt to the public servant are part of the same transaction. For avoiding the repetition of evidence and overburdening of the court records, all points of determination for convicting accused persons for alleged offences are being analyzed and determined simultaneously. As per section 101 Indian Evidence Act, the onus of proving the points is on the prosecution.

13. Given the said background and before adverting to the testimonies of the prosecution witnesses, individually and collectively, it shall be useful to note what the Hon'ble SC has laid down recently in Shahaja @ Shahajan Ismail Mohd. Shaikh vs State Of Maharashtra 2022 (SC) 596 Cr. Appeal 739 OF 2017 decided on 14 July 2022. Specifically as to the testimony of an eye witness, it was laid down in the said judgment by the Hon'ble Court as State Vs. Vikas Gupta PS Kotwali follows:

"27. The appreciation of ocular evidence is a hard task. There is no fixed or straight-jacket formula for appreciation of the ocular evidence. The judicially evolved principles for appreciation of ocular evidence in a criminal case can be enumerated as under:

I. While appreciating the evidence of a witness, the approach must be whether the evidence of the witness read as a whole appears to have a ring of truth. Once that impression is formed, it is undoubtedly necessary for the Court to scrutinize the evidence more particularly keeping in view the deficiencies, drawbacks and infirmities pointed out in the evidence as a whole and evaluate them to find out whether it is against the general tenor of the evidence given by the witness and whether the earlier evaluation of the evidence is shaken as to render it unworthy of belief.

II. If the Court before whom the witness gives evidence had the opportunity to form the opinion about the general tenor of evidence given by the witness, the appellate court which had not this benefit will have to attach due weight to the appreciation of evidence by the trial court and unless there are reasons weighty and formidable it would not be proper to reject the evidence on the ground of minor variations or infirmities in the matter of trivial details.

III. When eye-witness is examined at length it is quite possible for him to make some discrepancies. But courts should bear in mind that it is only when discrepancies in the evidence of a witness are so incompatible with the credibility of his version that the court is justified in jettisoning his evidence.

IV. Minor discrepancies on trivial matters not touching the core of the case, hyper technical approach by taking sentences torn out of context here or there from the evidence, attaching importance to some technical error committed by the investigating officer not going to the root of the matter would not ordinarily permit rejection of the evidence as a whole.

V. Too serious a view to be adopted on mere variations falling in the narration of an incident (either as between the evidence of two witnesses or as between two statements of the same witness) is an unrealistic approach for judicial scrutiny.

VI. By and large a witness cannot be expected to possess a photographic memory and to recall the details of an incident. It is not as if a video tape is replayed on the mental screen.

VII. Ordinarily it so happens that a witness is overtaken by events.

State Vs. Vikas Gupta PS Kotwali The witness could not have anticipated the occurrence which so often has an element of surprise. The mental faculties therefore cannot be expected to be attuned to absorb the details.

VIII. The powers of observation differ from person to person. What one may notice, another may not. An object or movement might emboss its image on one person's mind whereas it might go unnoticed on the part of another.

IX. By and large people cannot accurately recall a conversation and reproduce the very words used by them or heard by them. They can only recall the main purport of the conversation. It is unrealistic to expect a witness to be a human tape recorder.

X. In regard to exact time of an incident, or the time duration of an occurrence, usually, people make their estimates by guess work on the spur of the moment at the time of interrogation. And one cannot expect people to make very precise or reliable estimates in such matters. Again, it depends on the time-sense of individuals which varies from person to person.

XI. Ordinarily a witness cannot be expected to recall accurately the sequence of events which take place in rapid succession or in a short time span. A witness is liable to get confused, or mixed up when interrogated later on.

XII. A witness, though wholly truthful, is liable to be overawed by the court atmosphere and the piercing cross examination by counsel and out of nervousness mix up facts, get confused regarding sequence of events, or fill up details from imagination on the spur of the moment. The subconscious mind of the witness sometimes so operates on account of the fear of looking foolish or being disbelieved though the witness is giving a truthful and honest account of the occurrence



witnessed by him.

XIII. A former statement though seemingly inconsistent with the evidence need not necessarily be sufficient to amount to contradiction. Unless the former statement has the potency to discredit the later statement, even if the later statement is at variance with the former to some extent it would not be helpful to contradict that witness.

28. To put it simply, in assessing the value of the evidence of the eye witnesses, two principal considerations are whether, in the circumstances of the case, it is possible to believe their presence at the scene of occurrence or in such situations as would make it possible for them to witness the facts deposed to by them and secondly, whether there is anything inherently improbable or State Vs. Vikas Gupta PS Kotwali unreliable in their evidence. In respect of both these considerations, the circumstances either elicited from those witnesses themselves or established by other evidence tending to improbabilise their presence or to discredit the veracity of their statements, will have a bearing upon the value which a Court would attach to their evidence. Although in cases where the plea of the accused is a mere denial, yet the evidence of the prosecution witnesses has to be examined on its own merits, where the accused raise a definite plea or puts forward a positive case which is inconsistent with that of the prosecution, the nature of such plea or case and the probabilities in respect of it will also have to be taken into account while assessing the value of the prosecution evidence. ....

30. In the aforesaid context, we may refer to a decision of this Court in the case of State of U.P. v. Anil Singh, AIR 1988 SC 1998, wherein in para 15, it is observed thus :

"15. It is also our experience that invariably the witnesses add embroidery to prosecution story, perhaps for the fear of being disbelieved. But that is no ground to throw the case overboard, if true, in the main. If there is a ring of truth in the main, the case should not be rejected. It is the duty of the court to cull out the nuggets of truth from the evidence unless there is reason to believe that the inconsistencies or falsehood are so glaring as utterly to destroy confidence in the witnesses. It is necessary to remember that a Judge does not preside over a criminal trial merely to see that no innocent man is punished. A Judge also presides to see that a guilty man does not escape. One is as important as the other. Both are public duties which the Judge has to perform."

14. Starting with the first point of determination, it is the prosecution case that the complainant Gangaram who was a rickshaw puller was present at the spot at a relevant point of time in search of the passenger. PW-1 Gangaram who is the complainant and another eye-witness PW-2 Raj Kumar deposed in their testimonies that around 4:30 am, the complainant was present at the spot. PW-4 Ct. Ram Singh has further corroborated this version and the presence of PW-4 at the spot is proved vide DD no. 26PP dated State Vs. Vikas Gupta PS Kotwali 06.06.2019 which is admitted document as Ex. A-4. Even the IO/PW-6 ASI Raghunath specifically stated that when he reached the spot he

found the complainant and Ct. Ram Singh at the spot. Despite cross-examination of the complainant and the public servant Ct. Ram Singh by defence, they remained at their stance and their evidence stood uncontradicted in this regard. Therefore, the presence of the complainant Gangaram and Ct. Ram Singh at the spot of occurrence at the time of commission of offence is established by the prosecution evidence.

15. Coming to the section 186 IPC, provides the punishment for voluntarily obstructing any public servant in the discharge of his public functions. Section 353 IPC provides the punishment for assaulting or using criminal force to any person being a public servant in the execution of his duty as such public servant, or with intent to prevent or deter that person from discharging his duty as such public servant, or in consequence of anything done or attempted to be done by such person in the lawful discharge of his duty as such public servant. The common thread running between Section 186, IPC and Section 353, IPC is that the offence should have been committed against a public official when the official was discharging his official duties as a public servant. So, it is necessary for the prosecution to establish that the complainant was discharging his official duties as a public servant when the accused committed offences with which he is charged in State Vs. Vikas Gupta PS Kotwali the present case.

16. It has been held by the Hon'ble Supreme Court of India in a three judges bench judgment in a case titled Durgacharan Naik And Ors vs State Of Orissa, 1966 AIR 1775: "It is true that most of the allegations in this case upon which the charge under Section 353, Indian Penal Code is based are the same as those constituting the charge under s. 186, Indian Penal Code but it cannot be ignored that section 186 and 353, Indian Penal Code relate to two distinct offences and while the offence under the latter section is a cognizable offence, the one under the former section is not so. The ingredients of the two offences are also distinct. Section 186, Indian Penal Code is applicable to a case where the accused voluntarily obstructs a public servant in the discharge of his public functions but under Section 353, Indian Penal Code the ingredient of assault or use of criminal force while the public servant is doing his duty as such is necessary. The quality of the two offences is also different. Section 186 occurs in Ch. X of the Indian Penal Code dealing with Contempt of the lawful authority of public servants, while s. 353 occurs in Ch. XVI regarding the offences affecting the human body. It is well established that s. 195 of the Criminal Procedure Code does not bar the trial of an accused person for a distinct offence disclosed by the same set of facts but which is not within the ambit of that section."

17. In the present case, a complaint under Section 195 Cr.P.C was made by the Assistant Commissioner of Police, Sub-Division, North District, Delhi, who was the senior officer of the complainant at the relevant time. The said complaint is Ex. P-1. The complaint has been admitted by the accused u/s 294 Cr.P.C. Therefore, compliance of Section 195 Cr.P.C has been done in the present case.

18. Section 332, IPC, provides punishment for voluntarily causing hurt to deter a public servant from his State Vs. Vikas Gupta PS Kotwali duty. In order to prove the offence punishable under Section 332 IPC, the prosecution has to establish that the police official Ct. Ram Singh was a public servant at the time of incident and that the accused had voluntarily caused hurt to such public

servant and further that and at the time of hurt public servant was discharging his duty as such public servant or that the accused had intention to prevent or deter the victim or any other public servant from discharging his duties as such public servant. Section 324, IPC, provides punishment for causing hurt by means of sharp weapon.

19. The prosecution heavily relied upon the ocular testimony of PW-1 and PW-2 and PW-4, who are also eye- witnesses of the other alleged offences. PW-6 is also a material witness in this case as he was an investigation officer. PW-3 Ct. Anil has proved the factum of registration of the present FIR. After scanning the prosecution evidence in whole, I would like to make the following observations:

20. Contradictions qua the time of offence and delay in registration of FIR: As per the first complaint which is exhibited as Ex. PW-1/A and tehrir exhibited as Ex. PW- 6/A, time of incident is mentioned as 04:30 AM and time of sending the tehrir is mentioned as 08:15 PM. PW-6/IO deposed that at around 08:15 pm rukka was handed over to the Ct. Amit for registration of the FIR. However, in complete contrast to such deposition and the said State Vs. Vikas Gupta PS Kotwali documentary records, PW-3 Ct. Amit has deposed that IO has called him at about 08:00 am in the morning, and he specifically deposed that at about 08:15 am he took tehrir and rukka to the PS. From the testimony of the complainant and other eye-witnesses, it is observed that the incident allegedly occurred in the morning, as per the documentary record i.e. tehrir Ex. PW-6/A, FIR Ex. A-1 and endorsement Ex. A-2, it is reflected that the FIR was registered in the late evening at about 08:31 pm. The same version is not corroborated with the testimony of PW-3 who is a material witness to prove the factum of registration of FIR. Further, it is also notable that as per the complainant/PW-1, PW-2 and PW-4 after the medical examination, the complaint was registered, which reflects that the FIR could have been registered in the morning itself. The explanation deposed by the PW-6/IO which caused the delay in the registration of FIR is not mentioned or highlighted by any of the prosecution witnesses.

21. Here, it is relevant to refer to the case of Ravinder Kumar and Anr. v. State of Punjab (2001) 7 SCC 690 where the Apex Court made the following observation about the delay in lodging FIR:

The attack on prosecution cases on the ground of delay in lodging FIR has almost bogged down as a stereotyped redundancy in criminal cases. It is a recurring feature in most of the criminal cases that there would be some delay in furnishing the first information to the police. It has to be remembered that the law has not fixed any time for lodging the FIR. Hence a delayed FIR is not illegal. Of course a prompt and immediate lodging of the FIR is the ideal as State Vs. Vikas Gupta PS Kotwali that would give the prosecution a twin advantage. First is that it affords commencement of the investigation without any time lapse. Second is that it expels the opportunity for any possible concoction of a false version. Barring these two plus points for a promptly lodged FIR the demerits of the delayed FIR cannot operate as fatal to any prosecution case. It cannot be overlooked that even a promptly lodged FIR is not an unreserved guarantee for the genuineness of the version incorporated therein.

When there is criticism on the ground that FIR in a case was delayed the court has to look at the reason why there was such a delay. There can be a variety of genuine causes for FIR lodgment to get delayed. Rural people might be ignorant of the need for informing the police of a crime without any lapse of time. This kind of unconversantness is not too uncommon among urban people also. They might not immediately think of going to the police station. Another possibility is due to lack of adequate transport facilities for the informers to reach the police station. The third, which is a quite common bearing, is that the kith and kin of the deceased might take some appreciable time to regain a certain level of tranquillity of mind or sedativeness of temper for moving to the police station for the purpose of furnishing the requisite information. Yet another cause is, the persons who are supposed to give such information themselves could be so physically impaired that the police had to reach them on getting some nebulous information about the incident.

22. Adverting to the issue of delayed registration of FIR, the Supreme Court of India in the case of *Amar Singh v. Balwinder Singh and Ors.* (2003) 2 SCC 518 held:-

In our opinion, the period which elapsed in lodging the FIR of the incident has been fully explained from the evidence on record and no adverse inference can be drawn against the prosecution merely on the ground that the FIR was lodged at 9.20 p.m. on the next day. There is no hard and fast rule that any delay in lodging the FIR would automatically render the prosecution case doubtful. It necessarily depends upon facts and circumstances of each case whether there has been any such delay in lodging the FIR which may cast doubt about the veracity of the prosecution case and for *State Vs. Vikas Gupta PS Kotwali* this a host of circumstances like the condition of the first informant, the nature of injuries sustained, the number of victims, the efforts made to provide medical aid to them, the distance of the hospital and the police station, etc. have to be taken into consideration. There is no mathematical formula by which an inference may be drawn either way merely on account of delay in lodging of the FIR. In this connection it will be useful to take note of the following observation made by this Court in *Tara Singh & Ors. v. State of Punjab*, AIR 1991 SC 63 :

"The delay in giving the FIR by itself cannot be a ground to doubt the prosecution case. Knowing the Indian conditions as they are, one cannot expect these villagers to rush to the police station immediately after the occurrence. Human nature as it is, the kith and kin who have witnessed the occurrence cannot be expected to act mechanically with all the promptitude in giving the report to the police. At times being grief-stricken because of the calamity it may not immediately occur to them that they should give a report. After all, it is but natural in these circumstances for them to take some time to go the police station for giving the report. Of course, in cases arising out of acute factions there is a tendency to implicate persons belonging to the opposite faction falsely. In order to avert the danger of convicting such innocent persons the Courts should be cautious to scrutinise the evidence of such interested witnesses with greater care and caution and separate grain from the chaff

after subjecting the evidence to a closer scrutiny and in doing so the contents of the FIR also will have to be scrutinised carefully. However, unless there are indications of fabrication, the Court cannot reject the prosecution version as given in the FIR and later substantiated by the evidence merely on the ground of delay. These are all matters for appreciation and much depends on the facts and circumstances of each case."

23. In the case of Sahebrao & Anr. v. State of Maharashtra (2006) 9 SCC 794 the apex court clarified the legal position on the point:-

"The settled principle of law of this Court is that delay in filing FIR by itself cannot be a ground to doubt the prosecution case and discard it. The delay in lodging the FIR would put the Court on its State Vs. Vikas Gupta PS Kotwali guard to search if any plausible explanation has been offered and if offered whether it is satisfactory.

At this juncture, we would like to quote the following passage from State of Himachal Pradesh v. Gian Chand, (2001) 6 SCC 71, wherein this Court observed: "Delay in lodging the FIR cannot be used as a ritualistic formula for doubting the prosecution case and discarding the same solely on the ground of delay in lodging the first information report. Delay has the effect of putting the court on its guard to search if any plausible explanation has been offered for the delay, and if offered, whether it is satisfactory or not. If the prosecution fails to satisfactorily explain the delay and there is a possibility of embellishment in the prosecution version on account of such delay, the delay would be fatal to the prosecution. However, if the delay is explained to the satisfaction of the court, the delay cannot by itself be a ground for disbelieving and discarding the entire prosecution case. "

24. Time and again, the object and importance of prompt lodging of the First Information Report has been highlighted. Delay in lodging the First Information Report, more often than not, results in embellishment and exaggeration, which is a creature of an afterthought. A delayed report not only gets bereft of the advantage of spontaneity, the danger of the introduction of the coloured version, exaggerated account of the incident or a concocted story as a result of deliberations and consultations, casting a serious doubt on its veracity. Therefore, it is essential that the delay in lodging the report should be satisfactorily explained. ( Reference: 2008 V AD (Cr.) (SC) 577) State of Andhra Pradesh Vs. M. Madhusudhan Rao).

25. In the present case, perusal of the initial information received to the police officials at 8:30 a.m as per tehrir as State Vs. Vikas Gupta PS Kotwali IO and Ct. Ram Singh were both present at the spot itself at the time of alleged offence. PW-1 complainant deposed that after their medical examination, his complaint was lodged and other documents were prepared. PW-2 deposed that after the medical examination, the complainant came to PP Red Fort and his complaint was lodged. Here, it is pertinent to note that to the utter surprise of the court, there is not even a single document on record which is signed by PW-2 who is a public witness and who alleged that he was attacked by the accused resulting in bleeding to him. PW-4 reproduced a version by deposing that

after apprehending the accused, he was taken to PP Red Fort and a recovery of cutter and robbed money is effected on cursory search of accused. He further deposed complaint was lodged and an FIR was registered in this case. However, during his cross-examination he deposed that after the medical examination, he along with IO and the accused came to the spot, which contradicted his own statements given in examination-in-chief. PW-5 deposed that he took all the injured persons including the accused for medical examination and thereafter returned at PP Red Fort along with their MLCs. In view of the above discussion, it came out that the incident allegedly occurred at 04:30 am and police officials were already present at the spot, even after medical treatment of the accused and the injured, FIR could very well be registered in the morning. No reasons have come forward in the deposition of any of the said State Vs. Vikas Gupta PS Kotwali witnesses which justified the registration of FIR at about 8:30 PM. Also, the testimony of prosecution witnesses is riddled with contradictions qua the chronology of events soon after the alleged offence. The version put forth by the prosecution has material inconsistencies that raise doubts in the mind of the court.

#### 26. Amidst all these contradictions, testimony of PW-

6/IO altogether presented a different story, he deposed that after the medical examinations, the complainant left the hospital only to park his Rickshaw and he came back in the evening at the PS. There is no whisper of this explanation for delay in the testimony of any of the prosecution witnesses, not even PW-1. The alleged incident happened in June 2019 and testimony of PW-1 is recorded in the court in February 2020, there is no apparent lapse of time which could even justify that the complainant might have forgotten about what material event followed on the relevant day, especially when he was the victim of an allegedly serious offence. Further, as per the tehrir which is Ex. PW6/A, it was prepared at the police post, then when and how the complainant went to the police post from the police station, and why PW-1 omitted to depose qua such facts also during his examination remained open to interpretation. During the cross-examination, PW-6/IO at one point deposed that after medical examination of all injured and accused, they came back at the Police Post and again at another point he deposed that the accused was State Vs. Vikas Gupta PS Kotwali taken to the spot from the hospital at around 11-11:30 am. Testimony of IO is not only contrary with depositions of other prosecution witnesses but also with his own ocular testimony.

27. In the present case there is an unexplained delay of about 15 hours or so which could afford an opportunity to the complainant and injured for embellishment or concoction especially when the police officials were themselves present at the spot of the occurrence. In these circumstances, when the delay of a considerable time in lodging the FIR is not satisfactorily explained, it is significant, inordinate and is fatal to the case of prosecution, benefit of which clearly goes in favor of the accused and against the prosecution.

28. Ambiguities with respect to the apprehension of the accused: PW-1, the star-witness of the prosecution testified that after committing robbery of his money, one of the accused had attacked him on his neck and started running away. He further deposed that he chased all the accused and with the help of public persons and Ct. Ram Singh had apprehended the accused. His whole examination-in-chief is silent about the presence of IO/ASI Raghunath at the spot and during his cross-examination, he mentioned the presence of only one police official at the spot i.e. Ct. Ram

Singh. Same version is reflected in the testimony of PW-2. On the other hand, PW-4 deposed that after the commission of the alleged robbery, the State Vs. Vikas Gupta PS Kotwali complainant narrated the incident to both him and IO, they all ran after the accused and thereafter, the accused was apprehended by 4-5 persons who were standing on the tea- stall. Now, PW-6/IO deposed that he heard noise and witnessed that Ct. Ram Singh and some other persons were running towards the gate no.1, Metro, thereafter, when he reached at spot he witnessed Ct. Ram Singh and complainant in an injured condition. Prosecution has examined one more witness PW-5 Ct. Jitender, who deposed that he was also on patrolling duty on the relevant day and he also saw Ct. Ram Singh, ASI Raghunath, two rickshaw pullers and the accused at the spot. He deposed that on the direction of IO, he took all the injured persons from the spot to the hospital for medical examination and obtained MLC report. However, testimonies of above- mentioned PWs are silent regarding the presence and role of PW-5 at the spot. Further, PW-6/IO deposed that he took all the injured for the medical examination. These contrary versions of the prosecution witnesses create doubts in the story of the prosecution as to who all were present at the spot and how, when and where the accused was apprehended. All these things have raised serious doubts on the truthfulness of the story of prosecution. In the above circumstances, there is reasonable doubt regarding the presence of the accused at the spot and his apprehension near the spot at the time of alleged date of incident.

29. Incongruity regarding the injuries caused to the State Vs. Vikas Gupta PS Kotwali witnesses: As per PW-1 and PW-2, the accused had attacked PW-1/complainant with a cutter on his neck, then attacked Ct. Ram Singh with the cutter and further attacked PW-2/Raj Kumar with the cutter and bit on his hand. PW-2 also deposed that his clothes were stained with blood and IO took photographs of his injured hand. PW-4, however, deposed that the accused not only used a cutter against his body but also bit on his right and left hand and also tore his uniform. PW-4 did not mention about causation of any injuries by the accused to the PW-1 and PW-2, similarly, PW-1 and PW-2 did not mention about tearing of clothes of PW-4 and biting of his hands by the accused. It appears that the depositions of three eye- witnesses are not corroborated with each other, which further raises suspicion over the occurrence of the alleged incident.

30. Furthermore, injuries to the PW-1/complainant, PW-

2/ Raj Kumar and PW-4/Ct. Ram Singh could not be proved. The MLCs (Mark M-2, M-3, M-4) of the injured persons are not the original MLC. A document must be proved by primary evidence and a secondary evidence of its existence, condition or contents can be given in those cases listed from clauses (a) to (g) of Section 65 of the Indian Evidence Act, 1872. The party seeking to rely on secondary evidence is to prove that their case falls in one of the said clauses. The prosecution during trial has not specifically taken any plea for leading secondary evidence.

State Vs. Vikas Gupta PS Kotwali No explanations came on record of the prosecution regarding the loss of the original MLCs. Neither the IO/PW6 has produced a receipt of the original MLCs nor has he been examined by the prosecution to prove the loss of the original MLCs. In such a situation, the claim of hurt being caused to the complainant and Ct. Ram Singh, or injuries being suffered by them comes under a shadow of doubt.

31. Seizure and seal of weapon of offence i.e. cutter:

Firstly, as per two most important documents, the first complaint and tehrir i.e. Ex. PW-1/A and Ex. PW-6/A respectively, at the time of apprehension of the accused, no recovery from the possession is said to be effected. Another important document is the seizure memo of the cutter exhibited as Ex. PW1/D, as per which during the police custody of the accused, the cutter was recovered from the backside of the Red Fort Metro Station, Gate no.1 at the instance of the accused. There is no pointing out memo on record. PW-6/IO deposed that the recovery of the said cutter was made after the disclosure statements of the accused, the accused took him to the spot of recovery and recovery is made on his instance. He deposed that only he and Ct. Ram Singh was present at the time of recovery of the cutter. However, the recovery memo bears the signature of PW-1 also. Not only this, the disclosure statements of the accused i.e. Ex. PW-4/B does not whisper a single line or phrase regarding the discovery of State Vs. Vikas Gupta PS Kotwali the place of recovery. Further, the authorship of concealment is also absent. Hence, there is no specific disclosure statement which leads to the discovery of fact in the present case and the said discovery statements has to be discarded in toto. PW-6 also admitted the suggestion during his cross-examination that the cutter was not recovered in the cursory search of the accused.

32. On the other hand, PW-1 and PW-4 who are attesting witnesses of the seizure memo of cutter gave a completely different story qua the recovery of the weapon. As per PW-1, after lodging his complaint, a seizure memo of cutter was prepared and he signed on it at point A. It has also come on record during his cross-examination that police officials have taken his thumb impressions on some documents out of which some were filled and some were planned. Here, the possibility that the complainant could have signed on any of the documents relied upon by the prosecution without knowing the contents of the same cannot be ruled out. On the other hand, PW-4 gave a version that after the alleged incident, the accused was taken to the Police post and on his cursory search, the said cutter was recovered, which could mean that the recovery was made much before the registration of the FIR. Then, how the FIR number could appear on the seizure memo of the cutter remained unanswered by the prosecution. When cross-examined, PW-4 admitted the suggestion that IO had seized the cutter at the Police post only and he deposed State Vs. Vikas Gupta PS Kotwali that they did not visit anywhere to search the cutter along with the accused. Hence, the story of prosecution regarding the recovery of cutter as produced in the testimony of PW-6/IO is in complete contrast to the versions deposed in the testimonies of other two prosecution witnesses who have allegedly witnessed the recovery proceedings. This puts questions on the entire recovery proceedings of the case property as well and the possibility of planting of case property upon the accused could not be ruled out at this stage.

33. In view of the above discussion, it is not clear whether when, where and how the recovery of the weapon is made in this case and when all paperwork related to seizure of the weapon of offence was done. This erodes the credibility of the recovery witnesses and the possibility of tampering cannot be ruled out. Further, as per seizure memo of cutter, the cutter was seized by preparing a pullinda and



sealed with a seal of R.P. Admittedly, no seal handing over memo was prepared as IO/PW-6 and PW-4 who clearly stated that no seal handing over memo was ever prepared. The seal was handed over to whom after its use is also not answered by the prosecution, neither is it handed over to any independent witness nor deposited in Malkhana. Also, the court cannot lose sight of the fact that this kind of cutter is easily available in the market as suggested by defence during cross-examination of PW-4 and PW-6. In this scenario, the possibility of tampering State Vs. Vikas Gupta PS Kotwali with a weapon of offence and even the possibility of planting the weapon cannot be ruled out.

34. Recovery of robbed money amounting to Rs. 630/-:

As per the version of the prosecution cash of Rs.630/- were stolen from the left side pocket of the lower of the accused as per the seizure memo Ex. PW-1/C. PW-1 has exhibited the said seizure memo and has identified the recovered cash. What is important here is to note that the complainant in his initial statement had not told the police about the number of each currency note robbed. How the complainant identified the currency notes to be the same notes as robbed from him is not known. The witness did not mention any special mark or feature on the notes which helped him in concluding that the currency notes were his property. During his cross-examination, he stated that he cannot tell if the currency notes produced before the court during his examination were the same notes which police officials had seized. Even IO/PW-6 has deposed that he had not mentioned any specific identity mark or any serial number or specific color of the recovered currency notes. Ordinarily, it is next to impossible for a person to merely look at a currency note and tell whether the same belongs to him or not. Neither any photographs were taken by the IO at the time of recovery.

35. As per the seizure memo Ex. PW-1/C, IO had deposited the case property in the Malkhana, however, the said malkhana register is also not proved on record. There State Vs. Vikas Gupta PS Kotwali is no seal handing over memo on record. PW-4 and PW-6 denied the preparation of any seal handing over memo after its use in seizing the case property. PW-6 also deposed that currency notes were seized by him in a plastic box which is a watch box and the same is not provided in the IO kit, and the same was arranged by him. How the same was arranged that also remains unanswered. PW-4 and PW-6 admitted that there is also an overwriting of the amount written on the seizure memo. Hence, the safe custody of the allegedly recovered case property and the possibility of tampering with the case property cannot be ruled out.

36. No public witness joined despite the availability:

Testimonies of all the PWs who were allegedly present at the spot reflected that certain rickshaw pullers, flower vendors and tea-stall vendors were present at the spot. It has also been reflected that the accused was apprehended at the spot with the help of public persons and he sustained injuries as he was also beaten by the public. Even PW-6/IO deposed that the public persons who were sleeping on the footpath woke up and gave beatings to the accused. However, he admitted that no public

persons were joined in the investigation, neither any notice was given to any such persons nor any statements of such public persons were recorded. Hence, the availability of public witnesses is admitted by all the prosecution witnesses. It is pertinent to observe here that it was broad day-light and the fact of State Vs. Vikas Gupta PS Kotwali not noting down the name or address of any witness in the diary, or giving notice to public persons who refused to be part of the investigation, casts doubt on the story of the prosecution that whether any serious efforts were made to join any public witness in the proceedings. It further raises the doubt as it is admitted by the prosecution witnesses that the injuries were caused to the accused during the alleged incident. It has been repeatedly observed in many landmark judgments of higher courts that non-joining of independent/public witnesses is fatal to the prosecution case and creates serious doubts regarding the genuineness of investigation proceedings done at the spot when there is all the opportunity and availability of public witnesses at the spot.

### 37. Seizure of uniform of the public servant:

Examination of PW-1 and PW-2 is silent qua the tearing of uniform of Ct. Ram Singh by the accused at the spot. Prosecution has relied upon the seizure memo of uniform which is exhibited as Ex. PW-4/A. However, there is no signature of Ct. Ram Singh on such a seizure memo when the seizure belonged to the uniform of Ct. Ram Singh and the uniform was allegedly given by him to the IO. PW-4 and PW-6/IO had identified the uniform during their examination, but during their cross-examination they deposed that the uniform was not bearing the name plate of Ct. Ram Singh. Both the said witnesses admitted the suggestion that the uniform is easily available in the State Vs. Vikas Gupta PS Kotwali market. PW-6 admitted that the said uniform was neither torn nor any button was broken, which falsifies the allegation leveled by PW-4 Ct. Ram Singh in his ocular testimony that the accused had torn his uniform. No seal handing over memo was prepared nor any independent witness was joined while making a seizure memo of the uniform. It is also an admitted fact that neither the uniform nor the blood samples were sent to the FSL. PW-4 deposed that he had handed over the uniform to the IO at about 11- 12 noon. However, PW6/IO deposed that seizure memo was prepared after the registration of FIR i.e. after about 08:30 pm as seizure memo bears the FIR number. Then, the questions also arise as to why there is delay of more than 8 hours in seizing the case property and in whose custody was the uniform during such 8 hours. Both these questions remained unanswered which doubts the safe custody of the case property. In this scenario when the seal was in the possession of IO, there is no proof regarding deposition of seal or seized pullanda in Malkhana and there is no name plate on the uniform, the possibility of planting of such property upon the accused and tampering with the seized property cannot be ruled out.

### CONCLUSION:

38. There is a maxim in Roman Law i.e., "ei incumbit probatio qui dicit, non qui negat" which means "proof lies on him who says, not on him who denies". It is trite in criminal jurisprudence that the prosecution is under an State Vs. Vikas Gupta PS Kotwali obligation to prove its case against the accused beyond reasonable doubt. The standard of proof to be adopted in criminal cases is not merely of preponderance of probabilities but proof beyond reasonable doubt on the basis of cogent, convincing and reliable evidence. It is also well settled that in case of doubt, the benefit must necessarily be allowed to the accused.

39. It is also a settled principle of criminal jurisprudence that culpability cannot be established on surmises and conjectures but it should rest on cogent, reliable and clinching evidence, dispelling every doubt and bulwarking the fact that in all possibility, the offence must have been committed by the accused. It is also a settled principle that though there may be an element of truth in the prosecution story against the accused but considered as a whole there is invariably a long distance to travel and whole of this distance must be covered by the prosecution by legal, trustworthy and unimpeachable evidence before an accused can be convicted. This principle of law has been reiterated by the Hon'ble apex court in the following cases : Sarwan Singh Rattan Singh v. State of Punjab AIR 1957 SC 637; Anil W. Singh v. State of Bihar, (2003) 9 SCC 67; Reddy Sampath W. v. State of A.P, (2005) 7 SCC 603 and Ramreddy Rajesh Khanna Reddy v. State of A.P, (2006) 10 SCC 172.

40. It is well settled law that the accused has a right to maintain silence in the trial. Every accused is to be State Vs. Vikas Gupta PS Kotwali presumed innocent until proven guilty. The burden of proof on the prosecution is to prove the case by leading cogent, convincing and reliable evidence so as to prove the guilt of the accused beyond reasonable doubt. The accused cannot be convicted on the basis of mere probabilities or presumptions. Suspicion however grave cannot take the place of proof.

41. I would like here to refer to the judgment of The Hon'ble Supreme Court of India titled as Sujit Biswas vs. State of Assam decided on 28th May, 2013, wherein it is held that:-

"6. Suspicion, however grave it may be, cannot take the place of proof, and there is a large difference between something that 'may be' proved, and something that 'will be proved'. In a criminal trial, suspicion no matter how strong, cannot and must not be permitted to take place of proof. This is for the reason that the mental distance between 'may be' and 'must be' is quite large, and divides vague conjectures from sure conclusions. In a criminal case, the court has a duty to ensure that mere conjectures or suspicion do not take the place of legal proof."

42. Now, I don't discount the possibility that there may be an element of truth in the prosecution story when considered as a whole, but the standard of proof in criminal cases dictates that the accused persons can be held guilty only when it is established that the accused has committed the offence. The prosecution has to traverse the distance between may have committed to must have committed in the light of cogent and unimpeachable evidence. Thus it is quite clear that the prosecution has State Vs. Vikas Gupta PS Kotwali failed to deliver on this end in the instant case.

43. Therefore, as a sequel of above discussion and findings, it can be said that these loopholes, inconsistencies and contradictions in the versions of prosecution witnesses, improbabilises its truthfulness but probabilises the version and defence of accused in this case. On careful perusal and analysis of the entire evidence, I find that there is no corroborative, consistent and sufficient evidence to make up the edifice of the prosecution case which has been produced by the prosecution. Therefore, the prosecution has failed to establish charge u/s 186/324/332/353/394/34 IPC beyond reasonable doubt. Therefore, the Accused is given the benefit of doubt. Accordingly, the accused Vikas Gupta S/o Sh. Shyam Chand Gupta R/o House no. 111, Gali no.3, Kanti Nagar, Delhi is hereby acquitted for an offence punishable under Section 186/324/332/353/394/34 of Indian Penal Code, 1860.

44. File be consigned to Record Room subject to compliance of section 437-A Cr.P.C.

Announced in the open court today i.e 29.11.2023. MEENA CHAUHAN Date:

2023.11.29 17:52:56 +0530 (MEENA CHAUHAN) Metropolitan Magistrate-08  
Central District, Tis Hazari Courts/Delhi [This judgment contains 35 pages and each  
page bears the initials of undersigned and the last page bears the complete sign of  
undersigned.] State Vs. Vikas Gupta PS Kotwali